

		and sold the firm many years later. Further, Petitioner's moving and reply papers fail to articulate any personal stake that Petitioner has in the motion to disqualify or any legally cognizable interest of Petitioner's that would be harmed by Bezaire & Leathers LLP's continued representation of Lou Ann Kelly and Michael Kelly. Lacking a personal stake in the motion to disqualify, Petitioner lacks standing even under the minority view recognized by <i>Moreci</i>. Even if he had standing, Petitioner has not established the existence of any conflict of interest warranting disqualification. Finally, the court notes that Lou Ann Kelly and Michael Kelly have yet to make an appearance in this case. Thus, Bezaire & Leathers is not, as of now, "attorney of record" for them. "A trial court's authority to disqualify an attorney derives from the power inherent in every court '[t]o control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto.'" (<i>People ex rel. Department of Corporations v. Speedee Oil Change Systems, Inc.</i> (1999) 20 Cal.4th 1135, 1145, emphasis added; internal citations omitted.) The court cannot control an attorney's representation of clients outside of litigation. For the foregoing reasons, the motion to disqualify is DENIED.
		TENTATIVE RULING Case: Calendar No.: Date: _____
		[Motion Type]
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